Schools Transgender Guidance

Intercom Trust
Lesbian, gay, bisexual & trans people in the South West

Devon & Cornwall Police
Building Safer Communities Together

CORNWALL COUNCIL

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Foreword

Thank you to all of the young people that identify as Trans* or are Gender non-conforming, their parents, carers and guardians that contributed to the initial creation and inspired this revised edition.

Cornwall Schools Transgender Guidance was written in collaboration with Cornwall Council, The Intercom Trust, Devon & Cornwall Police and head teachers in 2012. It was the first of its kind within the UK to be incorporated into schools and colleges, specifically aimed at supporting Trans pupils and students.

It was; and remains; a pioneering piece of partnership working showing that Cornwall can be at the forefront of making improvements in understanding and supporting pupils and students that identify as Trans succeed in education.

Cornwall Council, The Intercom Trust and Devon & Cornwall Police are extremely proud to have been involved in this document. We jointly support and endorse it to encourage schools and colleges to hold the guidance as best practice in the support of fair and equal education for all pupils & students in education across the country.

Following the success of the original document, having been used nationally to support many young people being recommended by and available on the Dept for Education website, we are pleased to have revised and updated the guidance to reflect on the successes, include new topics and incorporate the voices and experiences of young people this guidance was designed to help and support.

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Introduction

The purpose of this guidance is to deeper embed good practice in the field of Transgender work in schools and colleges and minimise distress and disruption to pupils, students and schools and colleges by:

- Ensuring teachers and governors are dealing with Trans matters inclusively; benefiting from professional advice and guidance.
- Promoting inclusion for all within education by improving services for Trans children and students.
- Empowering supporters of Trans pupils and students by providing a practical guidance to their experiences.

The preparatory work to this guidance established the need to provide support and guidance to schools and colleges so that a consistent approach to Trans matters can be adopted throughout schools and colleges by increasing knowledge and confidence.

Issues around gender development are becoming increasingly recognised by schools and colleges. In recent years, research, legislation, increased representation in the media and the professional capacity to understand the issues have increased public awareness of Gender Dysphoria. One positive consequence of this is the increasing number of young people coming forward with issues around their gender development seeking support before the issues become too distressing for them.

This guidance informs schools and colleges so that they can support, inform, protect and enable pupils and students questioning their gender identity to achieve their full potential whilst in education. It aims to be non-discriminatory in every aspect as issues with gender identity are seen across all other protected characteristics and everyone is entitled to have support.

Transgender* Identity

A Transgender person feels that their external appearance (sex) does not match up with the way they feel internally about their gender identity. A Female to Male (FtoM) person will have been assigned a female sex at birth yet identifies their gender as male; a Male to Female (MtoF) person will have been assigned as male at birth yet identify their gender as female.

The word transgender is sometimes used interchangeably with terms such as transsexual or gender-variant but usually has a narrower meaning and different connotations than gender variant, including non-identification with the gender assigned at birth. Children and students who experience issues with their gender development or are gender non-conforming may or may not be transsexual, as some will not retain their gender variance following puberty because this can be fluid. Gender variant people may also use terms such as non-binary, genderqueer or genderfluid to identify themselves and these terms are expanded upon in the glossary.

Gender Dysphoria (or Gender Identity Disorder) is a clinical condition that can present from as early as age two and can only be diagnosed by a medical and/or psychiatric expert. A person diagnosed with Gender Dysphoria may require treatment (e.g. hormone blockers) to ameliorate the symptoms associated with being Transgender. A Transgender person can live their life without being or needing to be diagnosed as having Gender Dysphoria.

Diagnosis and treatment for young people is currently only possible through a specialist team from the Tavistock and Portman clinic in London (the Tavistock hold regular satellite clinics in Exeter and Leeds). It must be understood that some people with Gender Dysphoria or those who identify as Non Binary or Gender Variant may not want any treatment. Some may choose to be known by a gender neutral name or to wear different clothes. However, most or all young Trans people (and their families) will need some support or information as they grow up and develop.

The editors recognise fully that there is a rich diversity of vocabulary that different stakeholders will prefer to use and have deliberately chosen a vocabulary that is suitable for use in practice in schools and colleges. There is a glossary of terms at the end of this document.

Legislation

Legislation that informs the participation of Trans (including gender variant) pupils and students in schools and colleges include the Human Rights Act 1998, Gender Recognition Act 2004 and the Equality Act 2010.

The Human Rights Act 1998

The following Articles from The Human Rights Act 1998 support the rights and needs of Trans people to live their lives in their true gender.

- Article 8: right to respect for private life and family life
- Article 10: freedom of expression
- Article 14: the prohibition of discrimination

(See resources section for more information)

The Gender Recognition Act 2004

The Gender Recognition Act 2004 is mainly concerned with the process by which a person can get a Gender Recognition Certificate, and correct their original birth certificate to match their true gender. This can only occur after a person reaches 18 years of age but is something that many younger people may aspire to.
(See resources section for more information).

The Equality Act 2010

The Equality Act 2010 ensures legal protection against discrimination (direct or indirect) for everyone under the nine protected characteristics defined in the Act, one of which is Gender Reassignment (also known as Transgender).

Part 6 of the Equality Act 2010 makes it clear that the Act specifically refers to Schools and young people (See resources section for more information).

The Equality Act 2010 (2:1:7) states that;

> A person has the protected characteristic of gender reassignment if the person is proposing to undergo, is undergoing or has undergone a process (or part of a process) for the purpose of reassigning the person's sex by changing physiological or other attributes of sex.

The act applies to employment, education and a range of other areas where discrimination may take place. In order to be protected under the Act, a pupil will not necessarily have to be undergoing a medical procedure to change their sex, but they must be taking steps to live in the opposite gender, or be proposing to do so.

Discrimination

The Equality Act 2010 ensures legal protection against discrimination in employment, education, the provision of services and the delivery of public functions, in relation to the nine protected characteristics defined in the Act, one of which is Gender Reassignment.

The legislation lays down that a school must not discriminate against a pupil because of their transgender status. Discrimination can be direct or indirect. Indirect discrimination occurs when a provision, criterion or practice applies to everyone but puts a person with a particular protected characteristic at a particular disadvantage, and it can't be justified as a proportionate means of meeting a legitimate aim. An example might be an inflexible school uniform rule which offers no "unisex" options such as trousers for girls, and which would therefore create a particular difficulty for an F2M pupil.

Unlike most of the protected characteristics, such as sex, race and religion, but like disability, this protection works in one direction only – not being transgendered is not a protected characteristic. Schools are therefore free to take special steps to meet the needs of Trans pupils without being accused of discriminating against pupils who are not Trans. There is no legal requirement, as there is for disability, to make "reasonable adjustments" for Trans pupils, but schools may take a similar approach to ensure that Trans pupils are properly catered for, and some of the possible steps discussed in this document are described as "reasonable adjustments". How this is done in practice may differ between schools as facilities and curriculums do vary, but should be worked towards, for the benefit of both school and pupils.

The Public Sector Equality Duty (PSED), at section 149 of the Equality Act 2010 requires public bodies to consider all individuals when carrying out their day to day work – in shaping policy, in delivering services and in relation to their own employees. It requires public bodies – including schools - when carrying out their activities to have due regard to the need to:

- eliminate discrimination,
- advance equality of opportunity,
- foster good relations between different people

The duty for schools applies to all the protected characteristics except age.

The School's governing body has a responsibility to ensure that the school is complying with its requirements under the Equality Act.

Schools have to publish information to show how they are complying with the Duty, and equality objectives. Unlike earlier equality duties the PSED does not require equality schemes to be produced, although some schools may choose to continue their existing Single Equality Scheme. It is also good practice for schools to keep a written record to show that they have actively considered their equality duties in respect of all relevant protected characteristics, including Transgender, when making decisions or creating policies, and have asked themselves the relevant questions. Publishing this will help to demonstrate that the duty to have due regard to equality is being fulfilled. There is no legal requirement to produce a formal equality analysis document; although for key decisions this might be a helpful tool.

Absence from School or College

Schools and colleges must make reasonable adjustments to accommodate absence requests for treatment and support from external sources in line with their absence policy.

Care must be taken to accurately and sensitively record the reason for the absence e.g. the pupil or student may need time off for a medical appointment which does not merit being recorded as sick. Each college should use their own system to record this whilst ensuring privacy of the young person.

Terminology and Language

It is good practice to focus on correct terminology and the use of language in school. In addition, there may be a need to focus some education in class around sexual orientation and gender, so that everyone has a clear understanding that sexual orientation (being heterosexual, bisexual, gay or lesbian) and gender identity (being male or female), are completely different things.

Terminology and language can be confusing around Trans issues. Different individuals and organisation sometimes prefer different terms to identify themselves and the nature of being Trans.

Often Trans people choose a different first name for their new identities and want documentation and records to reflect this, for example, the school roll and register.

It is extremely important, as a matter of fairness, respect and inclusion, to ensure that the correct gender, name and pronouns are used uniformly to address Trans people. Hearing people use 'him' or 'her' incorrectly can be uncomfortable or seriously detrimental for a Trans person to hear, especially when they are trying hard to confirm people's awareness of their true identity.

It can be difficult for the teachers and other students in school or college to get used to the change of name or gender if the pupil has not been known by that identity since the start of their school career. There may well be times when a mistake is made and this can be embarrassing for all parties. If there is difficulty in 'getting it right,' the use of the chosen first name will help to overcome this.

Transphobia and bullying

Sometimes people deliberately use the incorrect pronoun, first name or gender identifier in an attempt to bully or belittle a student. There are a number of resources in our resources section that can help schools and colleges deal with and report Transphobia and Transphobic bullying. A robust and preventative anti-bullying strategy will deal with many of the issues that may arise for pupils and for other teachers, students or pupils that visit the school.

Transphobic incidents or crimes must be recorded and dealt with in the same manner as other incidents that are motivated by prejudice or hate e.g. racist, homophobic and disablist incidents.

Trans people are often find themselves the subject of prejudice and the target of bullying because of their "difference". This can be compounded by a lack of understanding, clear explanations and leadership in school; which in turn can generate confusion causing people to revert to learned negative gender stereotyping. Transphobic behaviour may be directed to the actual Trans person, a friend or supporter, or anyone that may be perceived to be Trans (whether they are Trans or not).

All of these situations should be managed in line with school policies and centered around supporting the victim by managing any offenders future behaviour. Trans young people think that:

> "Teaching students about gender identity should be mandatory as it is currently optional in PSHE, when people are educated from an earlier age it reduces bullying and helps potentially Trans youths to explore their identity." T - School year 13

Training

Schools and colleges may identify a knowledge and understanding need amongst staff, governors, volunteers and other stakeholders in the subject of Gender Identity in which case it is necessary to source training in the subject. Local authorities may help with identifying and supporting the school's or college's identified training need. There is a list at the end of this document of key resources and organisations; some of whom offer training packages.

Recommendations

To develop the skills of staff, governors, volunteers and other stakeholders to support and teach Trans pupils and students the following important training topics should be considered in training needs assessment:

- Confidentiality;
- Gender identity;
- Privacy and dignity;
- Tackling transphobia; and Relevant Legislation

Sports and Physical Education

Sports and Physical Education is a key aspect of the national curriculum and the physical and mental well-being of young people. Physical education develops pupils' competence and their confidence to take part in a range of physical activities that become a central part of their lives, both in and out of school. A young Trans person has the same right to physical education and fitness as other young people and parents and young people can experience difficulty in schools:

> "The crunch point was always when I asked about PE when their faces would fall and they would admit that they didn't know how to approach the issue. It almost felt as if there was a fear of the PE staff, who couldn't possibly be expected to be flexible or understanding! In the end my child gets changed separately (their choice) and does PE with their gender of identity rather than their birth gender." A - School Year: 7

With regard to young Trans people at school or college PE lessons, there should be reasonably few, if any issues regarding participation within the sports of their true gender. There should certainly be no issue at primary level (where indeed most lessons will be mixed gender). At secondary level, this should also be the case. There may be sports where, as puberty develops, MtoF Trans participants may have a physical advantage over other girls but this should not present a problem within a carefully and sensitively managed lesson context. The issue of physical risk within certain sports should also be managed properly within the lesson context rather than by preventing young Trans people from participating, (which would be discriminatory).

It may be that due to the nature of contact and physicality of sports such as rugby that the school would consider whether Trans participation in full contact lessons is appropriate towards the latter stages of puberty. This is something schools are advised to take a view on prior to the delivery of those lessons, in discussion with parents or guardians.

The use of changing room facilities also needs to be carefully considered. Facilities for Trans participants should be sensitive to their needs and also recognise the needs and sensitivities of other students.

Within the competitive and representative aspects of school sports (outside of PE lessons), schools are advised to seek the advice of the various sporting governing bodies, which are beginning to attend to Trans issues bearing in mind the Equality Act 2010. That said, in the legislative framework of some sporting governing bodies, there is currently little clarity regarding Trans participation particularly around competition and representation at school level.

Certainly, FtoM young people may not gain a physical advantage in some sports, so there should be no issue regarding their participation (except those sports where there may be an issue regarding physical risk in high contact sports, where the school would need to carefully consider its approach).

The issues of competitive sport in relation to MtoF is a little more complex, as there may be a physical advantage gained by MtoF Trans participants in some sporting contexts. Whilst the various sporting bodies have not given specific advice about this at school level, schools are advised to take a common sense approach to the issue and deal with specific circumstances on an individual case by case basis. For example, it is highly likely that in football, no physical advantage would be gained in participation at the age of 11-12, but by the age of 15-16, there may be significant differences which may need to be taken into account. In certain circumstances some pupils or students may be in receipt of hormone blockers which may affect performance and eligibility for competition.

Whilst schools are advised to be cognisant of the advice of the various sporting bodies, which do have more issues with MtoF participation than FtoM, they are also encouraged to treat each case individually and sensitively, and to have close liaison

with families and carers through this process. Changing facilities would need to be managed sensitively at competitive or representative level. When competing at another school or outside venue, school staff would need to make sure appropriate and sensitive provision is made for changing which respects both the dignity of a young Trans participant and also their privacy.

A situation where a Trans pupil or student arrived in another school as part of a team and found that no appropriate provision had been made in advance for changing and showering could be both distressing and detrimental.

Recommendations

- Considering the legislation and available sporting bodies' advice, it is recommended that pre-puberty, there should be no issue regarding Trans participation in the sport of their choice at competitive or representative level.

- At secondary level, schools are advised to take a common sense approach to whether participation in a sport gives a physical advantage. If not, there should be no reason why a Trans pupil or student could not represent their school.

Transition from one school to another

Changing schools can be seen as a new start so this may well be the point at which young Trans people make a conscious decision to be known by their true gender. At times this may be problematic, negatively affecting friendships, behaviours and reputation in the school. However, changing schools can also be a very empowering time if the correct support and preparation is in place. It must be remembered that in school transition young trans people may, for the first time, find they are able to express themselves and be truly happy, and thus contribute positively and successfully both to their own academic development and to the school's and college's learning environment.

The management of a move between schools and colleges needs consideration and good communication between the old and new school or college. Their rights, thoughts, concerns and wishes of the young Trans person and their family or carers need to be established and considered at the earliest opportunity.

"When I moved to college my previous school told them about my transgender status without consulting me first, which was unprofessional. Schools should check beforehand with the person before disclosing the student's transgender status to new schools or colleges."
K - School Year: 13

Preparations might include identifying a single point of contact in the next school or college so that the young Trans person has the opportunity to develop a relationship with that single contact prior to arrival. This will help make the transition from one school or college to the other as seamless as possible. The new school then takes on a responsibility for preparing their school community in a safe and secure way so that the child is supported in the most appropriate way for them.

Transition in a Single Sex School

Transition may be one of the most difficult environments for a young Trans person to be who they are, as additional pressures from their peers may contribute to feeling, in some cases, isolated and excluded. A young Trans person will be clearly more identifiable in a single sex school.

If the young Trans person is transitioning , outside that of the school's or college's single sex status, then clear and concise communication should be made with the new school or college if they intend to leave (If this is a new school please see "Transition from one school to another", above).

However most importantly transitioning by a pupil is not a threat to the school's single-sex status because;

> A girl's school which permits a pupil who is undergoing gender reassignment to remain after they adopt a male gender role would not lose its single-sex status.
> (Taken from - Department for Education, March 2012, "Equality Act 2010: Advice for School Leaders, School Staff, Governing Bodies and Local Authorities", 2.2 'Single-Sex Schools')

Dealing with concerns of Staff, Families and Carers

Staff's concerns can be dealt with by providing appropriate training and having a clear policy (Equality and Diversity Policy) for the school to address the issues that are most commonly raised. Showing that the social, moral, spiritual and cultural considerations and also any legal and financial issues, and issues of confidentiality, have all been addressed can reduce the anxieties that develop amongst staff e.g. around disclosure. There are a number of factors that determine how much information schools and colleges may disclose. Confidential information about pupils must not be shared with other parents.

The following suggested statement has been used and will be suitable in most circumstances in relation to Trans issues:

As this issue involves the personal circumstances of a young child we are unable to make any comment on this individual case.

Our school is committed to working with families and other agencies to ensure that the needs of all children and young people in our care are met and that they can achieve their full potential.

Recommendations for press interest

- In general schools should not engage with the press over this issue. Any questions around media concerns should be directed towards the appropriate press officer or media relations officer.
- Early contact is made with your local press officer to obtain advice and guidance regarding possible press interest into the school and the young Trans person so that all school staff are aware of the potential interest and that they are prepared. This will allow staff to remain professional and calm throughout and remain clear about the message that the school endorses.
- Staff must know their duties and responsibilities around data protection so that they fully understand why information is protected, and when, how and to whom certain information can be released.

It must be recognised that people have their own prejudices. A parent or guardian may not always be the most supportive or appropriate person to assist the young person through transitioning. It may not be necessary for a parent or guardian to provide permission for a Trans pupil or student to take steps to transition as there may be issues raised of Fraser competence if parents will not consent.

Everyone's experience of life, particularly in respect to diversity, is different. Sometimes this can be because they do not know, or have not needed to think about what it means or how it feels to have issues with gender identity or development. Sometimes concerns can arise from the fear of wanting to get things right but not knowing how to approach the subject, or even what to say and what words to use. This can be addressed through school policies and specific awareness sessions to help staff feel more supported and comfortable in dealing with these issues.

"Teachers were very apprehensive and fearful at first, but with support from other professionals, have embraced the opportunity to expand their policy of inclusion." Parent of T - School Year: (not given)

Work Experience

There is an obligation on the part of the school or college and its work experience placements to keep pupils safe. As already stated the Equality Act 2010 encompasses every environment that pupils will be working in, therefore all placements should be aware of their duties and responsibilities. Where a school is considering a work experience placement the school must complete a suitable assessment on the potential placement to establish if there is any risk (physical or otherwise), taking account of rights to privacy - as a general principle personal information on the young Trans person must not to be shared.

Schools must be sensitive to this in their planning before any young Trans person is placed in any business or organisation. Careful discussion about the placement with the pupil, parents or carers needs to occur as early as possible to find the most suitable way forward to ensure the placement is successful.

Use of Toilets and Changing Facilities in School or College

The use of toilets and changing facilities often causes the most amount of debate around inclusion of Trans pupils and students. Concerns of Trans pupils and students are that they may find themselves in vulnerable situations such as a toilet or changing room where they could fall victim to unwanted attention, that could (if escalated), lead to sexual bullying, assault or other physical or emotional harm, but equally, that they are seen and treated as a member of their true gender.

Trans pupils and students are often told to use the 'accessible' facilities rather than those for their true gender. It may then be appropriate to rename these facilities using terms such as 'unisex accessible toilets', 'larger toilet', 'toilet and changing facility' or simply 'toilet' to reduce what is often perceived as the stigma of using toilets commonly identified as 'Disabled Toilet'. This will help ensure schools and colleges respect the dignity and privacy of both Trans pupils and students and also pupils and students with disabilities, whilst both ensuring everyone's safety and protecting their self-respect.

Possible solutions will depend on existing facilities and curriculum; some may already provide toilets and changing facilities that are unisex.

Recommendations

- Conduct an appropriate risk assessment and audit of your facilities.
- Identify, consider and make any reasonable adjustments.

"Nice having a gender-neutral toilet to use. Not nice when other kids make comments. Teachers are understanding but the actions they take are not very effective." Parent of O - School Year: 4

"We obtained permission for our child to use the disabled toilets to avoid issues around gender. Unfortunately the school saw it as their mission to "normalize" our child by getting them to use what they saw as the "gender appropriate" toilets. They saw the child's compliance as "success", whereas the issue was making them very unhappy and they were complying because they felt they had no choice. After all, at school you have to do as you are told or you'll get into trouble. So just because a child is complying with the gender rules doesn't mean that they are happy or comfortable – it's often because they don't feel safe to object." Parent of Y - School Year: Now Year 7, but issue was Year 4-6 **

Personal Social Health Education and Curriculum

PSHE lessons are an important part of preparing young people for some of the issues that they will come across in their lives. Awareness of Trans issues can be embedded within the curriculum from the outset. There are organisations that can support schools through all the key stages to widen their breath of knowledge. It might be as simple as ensuring, from the earliest key stage, that the resources available (see resources section) are more widely used in the school.

When reading to classes or setting history projects selecting as broad a spectrum of people/subjects as possible does not highlight any one individual, but Trans issues are made more mainstream. It may be appropriate that lessons intended for an older age range should be brought forwards a year or two and lessons might need to be more flexible in their content, particularly if you are aware that you have a Trans child/teacher/parent within the school community. Schools may find the lesson-resources provided on the School's Out 'Classroom' website useful in this respect (see resources section for more information).

"My school addressed transphobia in a PSHE Powerpoint however the teachers had no idea how to approach this and did not appear to have had any information to support them." P - School year 9

The Internet, Social Media and TV

Social media and the internet are seemingly inescapable parts of modern life. The safe and effective use of the internet is a great concern to all involved in safeguarding young people. Social media sites (Facebook, Twitter, Kik and Tumblr for example) are often a place for connections to be made that help people feel much less isolated. Connecting with people over common interests or shared experiences is more familiar to young people than connecting because of location or year group.

A number of support groups mentioned in the later sections have an internet presence that can provide support and connect young people with others in a similar situation. Sometimes people misuse these connections and abuse people thinking they are able to be anonymous. If people are abused over the internet capturing and keeping the abuse if it's written or an image is important and it is possible for the police to ask service providers for information to locate offenders.

Often it is tempting to advise young people who are bullied on Facebook for example to simply delete the account. This may however sever the help and support they gain from social media as well; so working to help keep personal security tight, be aware of boundaries in online life and connect to good websites is important. Advice for parents and young people on internet safety is available from CEOP and NSPCC and the information contained in their websites.

In recent years TV has started to portray Trans people in a more positive ways.

Recommendations

- Help to find healthy supportive internet sites.
- Educate yourself about internet safety and security by visiting:
  www.nspcc.org.uk/preventing-abuse/keeping-children-safe/share-aware/
  www.ceop.police.uk/

School Uniform and Regulations

School uniform should not present an issue for Trans young people: just as for any other pupil, they should be expected to follow the school uniform policy. All schools have a set of rules for makeup and appropriate dress and this will need to be enforced for any pupil. In schools which have uniform, there is generally a broad range available for both genders (i.e. girls can wear skirts, shorts or trousers and boys can wear trousers and shorts also) so that pupils that are having gender issues can have a 'gender neutral' option. There might need to be some consideration in relation to F2M pupils who are binding.

Where a school has a gender specific uniform, including PE kit, the young Trans person should be able to wear the uniform of their true gender (please see PE/Sport section). In some schools consideration may need to be given to the swimwear worn by pupils when participating in swimming lessons or water based activities. Exploring alternative swimwear options may avoid potential issues that could develop due to the revealing nature of this type of clothing. For example, schools may wish to revisit their sports kit requirements and permit all pupils to wear skirted swimsuits, rash vests, 'baggy' shorts or short wetsuits as alternatives to traditional costumes.

The most likely situation where clothing may be an issue is in a school that does not have uniform. Where children are free to choose clothing, making a transition from M2F or F2M may be harder as the change in clothing may be more obvious. However, many people will enjoy the freedom to choose clothing that expresses their individual style. Provided the child is dressing in an appropriate manner for the school regulations, feels safe and supported and the clothes they are wearing are appropriate for them, there should not be an issue.

Changing Names, Gender and Exam Certificates

Changing their name and gender identity is a pivotal point for many Trans people. If a Trans pupil or student wishes to have their personal data recognised on school systems, this needs supporting and will feed on to letters home, report cycles, bus pass information etc. Furthermore the change of name and associated gender identity should be respected and accommodated in the school.

In regards to schools recording this data, section 4.2.7 of the 'School census 2014 to 2015' (2015) Department for Education guidance indicates that the gender of a pupil is recorded in the format of male or female. However, "In exceptional circumstances, a school may be unsure as to which gender should be recorded for a particular pupil. Where this occurs, gender is recorded according to the wishes of the pupil and/or parent." This can be found at:

www.gov.uk/government/uploads/system/uploads/attachment_data/file/396890/2014_to_2015_School_Census_Guide_V_1_9.pdf

It remains open for the school to amend the gender of any pupil, within their own management information systems, at any time, and the department does not specify that this indicator must remain static within any technical requirements.

Changing name is a real indicator that the Trans pupil or student is taking steps to, or proposing to move towards a gender they feel they wish to live in. It is possible to change a name on a school or college roll or register for a preferred name and when sending details of young people to exam boards. Students can be entered under any name with an exam board. However, once a result is accredited it will need to be linked with a Unique Pupil Number (UPN) or Unique Learner Number (ULN) which existed in the school census information submitted in January of the exam year. UPNs and ULNs are only linked with legal names *, not preferred names. It is possible for exam certificates to be issued in the preferred name.

Schools and colleges are encouraged to ensure a strategy is agreed with the pupil or student and their parents or carers, then agreed with the various exam boards prior to starting the process to accredited courses as some exams may be sat in Year 10 and the length of time the process of re-registering may take has to be considered. Exam boards may be very experienced in Gender Identity issues so they may be able to guide the school or college through the process.

It is possible for most documents to be changed to reflect the chosen name or gender identity of the young person. Changing details on a birth certificate is not possible until a Gender Recognition Certificate has been issued. In order to change a name on other official documents such as a passport it might be necessary for evidence of change of name to be produced: there are two main ways in which this can be done, by deed poll and by statutory declaration. The Government advice is published here:

www.gov.uk/change-name-deed-poll/overview

Support organisations listed in the resources section will have more information on the subject of changing name. A person under 16 years cannot change their name legally without the consent of a parent and simply changing name does not change a legal gender identity.

Recommendations

- When sending data about the pupil or student to 3rd parties always ensure you are sending the correct information.
- Ensure that the correct name is used on exam certificates before being sent to pupils and students.
- Engage with the pupil or student as well as their parents and guardians to agree a strategy for presenting the correct information to the examination boards.
- The examination officer should contact the relevant exam board to discuss their processes.

"It is very supportive to record my gender as male even if my sex is female. I thank my school for letting me be me." T - School Year: 10

"There is excessive reinforcement of Gender in school, dividing geography class by Boys and Girls makes me feel very uncomfortable and often letters home have an M or F marker which I think is unnecessary." M - School Year: 9

Vaccinations

Historically vaccinations have been given to young people of all genders together in a large space such as sports hall. More recently, GP surgeries provide some schools with their vaccinations at the surgery while some vaccinations are given in school.

Consideration should be given to allowing the young Trans person to receive their vaccinations from their GP if the vaccination is gender specific i.e. a F2M Trans pupil or student may find it very difficult to stand in a queue of girls awaiting a female specific vaccination.

It should also be recognised that vaccinations are not always separated by gender (male / female) and if it is still necessary to have mass vaccination sessions in school, then a mixed gender queue could be used, as well as screens for the person receiving the vaccination be supplied to promote privacy whilst being included in the mainstream

(See Article 8 Human Rights Act 2004)

*Legal Name refers to the name in which a pupil or student arrives in education for the first time; this is often the name on their birth certificate.

School Trips, Exchanges and Overnight Stays

Learning about different cultures and, lives, and taking part in activities, may lead to overnight stays, both at home and abroad. Issues may arise for both young Trans pupils and students but this must not mean that they cannot be included on the trip. Consideration should be given well in advance to any additional needs which may include having a parent or guardian (as a member of staff) accompany the trip to ensure that the student is fully included.

The sleeping arrangements will need to be thought about before a trip is undertaken; it is possible that the student would prefer to have a separate room for example. Each individual case and trip needs to be thought of separately and in depth discussions should happen well in advance with any and all appropriate bodies.

The school or college should consider, just as anyone can be searched, Trans pupils and students may be searched at borders and other places. Different countries will have policies and procedures that they will follow. Contacting the relevant border control or agency in advance will ensure that any policy or risk assessment completed by the school or college is accurate for that visit or trip.

There are countries that are not as legally and culturally open as the UK. In fact some have laws that make it illegal to be part of the Transgender community. Some countries even make it an offence not to report to the authorities that someone is part of the Transgender community. Schools and colleges should investigate the laws regarding Trans communities in countries considered for school visits. The International Lesbian and Gay Association (ILGA) have more information on their website about countries that pose a risk to Trans individuals.

In relation to passports the passport office has a confidential service for people that are Trans (0800 448 8484) and more advice can be found here:

https://www.gov.uk/government/publications/applying-for-a-passport-information-for-transgender-and-transsexual-customers

Recommendations

- A risk assessment for the school or college visit/trip should be conducted to include Trans pupils and students.
- Any risks identified from the assessment should be managed so that any reasonable adjustments can be considered to facilitate the participation of the Trans pupils and students.

Appendix 1
External Support and Resources

Organisations that exist to provide support to pupils staff and parents

Agency	Web links	Services provided
The Laurels Gender Clinic	www.devonpartnership.nhs.uk	Offering ongoing support to people with Gender Identity issues through the NHS
YAY!	www.lgbtqyouthcornwall.co.uk	LGBTQ Youth Cornwall is for Lesbian, Gay, Bisexual, Trans and Questioning young people who are aged up to 25 years in Cornwall.
Schools out	www.Schools-out.org.uk	There are lesson plans, items about LGBT History Month (February), Transphobic bullying and info for teachers.
The Intercom Trust	www.intercomtrust.org.uk	South West charity that provides local professional community support and advocacy for LGBT and Non-Binary people and their families, and training and consultancy on LGBT and NB issues.
Gendered Intelligence	www.genderedinteligence.co.uk	A community interest company that delivers arts programmes, creative workshops, mentoring, training and youth group sessions to Trans youth (under the age of 25).
Gender Identity Research and Education Society	www.gires.org.uk	National body that examines the science around gender and Transgender individuals produces a wide range of resources for schools and other public bodies, including a toolkit on combating Transphobic bullying and an e-learning package.
Mermaids	www.mermaidsuk.org.uk	National charity that connects and supports young Trans people and their families
The Tavistock and Portman Clinic	www.tavistockandportman.nhs.uk	For children and young people (up to the age of 18) and their families experiencing difficulties in the development of their gender identity including children unhappy with their biological sex.
LGBT Consortium	www.lgbtconsortium.org.uk	We are a national membership organisation focusing on the development and support of LGBT groups, projects and organisations; so they can deliver direct services and campaign for individual rights. Provide a directory of agencies across the UK
The Beaumont Society	www.beaumontsociety.org.uk	National society that supports mainly M2F Trans people and their families and friends
International Lesbian and Gay Association	www.ilga.org	ILGA - International Lesbian and Gay Association information on international LGB&T issues

Appendix 2
Resources Links and Guidance

The external links, books & DVDs listed below are not an exhaustive list of resources that are available to support young Trans people. They are merely a guide to the range of resources available and should at all times be assessed and screened for their appropriateness and validity.

It should be noted that the content of external websites and other resources, sometimes vary over time. Therefore the content of these resources may need checking periodically to ensure that they are current and remain suitable.

Department for Education – Equality Act for Schools	http://www.education.gov.uk/schools/pupilsupport/inclusionandlearnersupport/inclusion/equalityanddiversity/a0064570/the-equality-act-2010
Equality & Human Rights Commission	http://www.equalityhumanrights.com
Gender Recognition Certificate	https://www.gov.uk/apply-gender-recognition-certificate/changing-your-gender
LGBT Collective	http://www.lgbtcollective.org.uk
Human Rights Article List	http://www.legislation.gov.uk/ukpga/1998/42/schedule/1
Transgender Wikipedia page	http://en.wikipedia.org/wiki/Transgender#Transgender_people_in_non-Western_cultures
Equalities Act 2010 (Part6 Education)	http://www.legislation.gov.uk/ukpga/2010/15/part/6
Gires Trans Wiki	http://www.gires.org.uk/tranzwiki/index.php/Main_Page)
AQA Education Board	http://web.aqa.org.uk
Useful DVD list (Wikipedia)	http://en.wikipedia.org/wiki/List_of_transgender_characters_in_film_and_television
Useful Book List (Wikipedia)	http://en.wikipedia.org/wiki/List_of_books_featuring_transgender_persons
True Vision Online Crime Reporting	http://www.report-it.org.uk
Ofqual	https://www.gov.uk/government/organisations/ofqual

Appendix 3
Useful Book List

(Please check the book's age range to ensure it is appropriate)

The book list is not meant to be a definitive guide. New books are published regularly and checking websites such as Amazon, Waterstones and other book retailers will add to your library of resources.

Different Families

It's Okay To Be Different *Todd Parr*
The Family Book *Todd Parr*
Who's in a Family? *Robert Skutch*
Picnic in the Park *Joe Griffiths*
Prince Cinders *Babette Cole*
The Princesses Have a Ball *Teresa Bateman*
You're Different and That's Super *Carson Kressley*
We're Different, We're the Same *Bobbi Kates*
Incredible You *Wayne Dyer*

Children

10,000 Dresses *Marcus Ewert*
The Boy in the Dress *David Walliams*
My Princess Boy *Cheryl Kilodavis*
The Sissy Duckling *Harvey Fierstein*
William's Doll *Charlotte Zolotow*
The Turbulent Term of Tyke Tiler *Gene Kemp*
Be Who You Are! *Jennifer Carr*
Tutus Aren't My Style *Linda Skeers*

Teenagers

Choir Boy *Charlie Anders*
Freak Show *James St James*
Morgan in the Mirror *C C Saint Clair*
My Brother Beth *Rebecca Sardella*
Parrotfish *Ellen Wittlinger*
Luna *Julie Anne Peters*
My Gender Workbook: How to Become a Real Man, a Real Woman, the Real You or Something Else Entirely *Kate Bornstein*
Feeling Wrong in Your Own Body: Understanding What it Means to be Transgender *Jaime A Seba*
How Stephen Became Stephanie and Other Transgender Tales *Kate Lesley*
Grrl Alex: A personal journey to a transgender identity *Alex Drummond*
Finding the Real Me: True Tales of Sex and Gender Diversity *Tracie O'Keefe & Katrina Fox (eds)*
Am I Transgender?: The Transgender Primer Vol 1 *A Lite*

Adults + reference

The Transgender Child: A Handbook for Families and Professionals *Stephanie Brill & Rachel Pepper*
Transparent: Love, Family and Living the T with Transgender Teenagers *Cris Beam*
Understanding Transsexualism *Mildred Brown & Chloe Rounsley*
Helping Your Transgender Teen: A Guide for Parents *Irwin Krieger*
Transgender Explained For Those Who Are Not *Joanne Herman*
The Transgender Studies Reader *Susan Stryker & Stephen Whittle (eds)*
Grrl Alex. A personal journey to a transgender identity *Alex Drummond*
Trans Bodies, Trans Selves: A resource for the Transgender Community *Laura Erickson-Shroth*
The History of a Dissident Sexuality in Southern Africa *Marc Epprecht*

Appendix 4
Useful DVD List

Tomboy - rated U

Ten year old Laure isn't like most girls. She prefers football to dolls and sweaters to dresses. When her family move to a new neighbourhood a local girl mistakes Laure to be a boy. Laure becomes Michael, and begins a summer of long sunny afternoons, playground games and first kisses. Yet with the school term fast approaching, and with suspicions arising amongst friends and family, Laure must face up to an uncertain future.

TransAmerica - rated 15

A movie about Bree, a pre-operative male-to-female transsexual awaiting gender-reassignment surgery who learns she has a wayward teenage son named Toby. When facing her past, she bails Toby out of jail and they end up on a road trip across the country.

Boys Don't Cry - rated 18

Based on real life events with some violent scenes, this groundbreaking film charts the life of an F2M young man and the intolerant people around him.

The Adventures of Priscilla Queen of the Desert - rated 15

The mostly light-hearted story of a trans woman, a drag queen and a gay man who travel to perform their stage show in the Australian outback.

Ma Vie En Rose - rated 12

The story of a little boy; Ludovic, who wants to be a girl. Convinced that he's the product of misplaced chromosomes (he imagines the mix-up in one of many delightful daydream sequences), he sets about righting the mistake by wearing dresses and high heels and experimenting with lipstick and makeup.

Breakfast on Pluto - rated 15

A dark comedy about a M2F foundling searching for love and her long-lost mother in small town in Ireland and London in the 1970s.

Better than Chocolate - rated 15

Comedy, drama and romance with a group of friends and family including characters across a hugely diverse spectrum.

Appendix 5
Trans History

Trans history is far too extensive to summarise in this guidance however it is important for readers and users of this guidance to research this history in order to obtain a better understanding of previous Trans communities. One of the most common feelings amongst young gender non-conforming people is that of isolation. In western society it is a common misconception that gender variance is a new phenomenon. Many branches of history, art, anthropology, literature and archaeology bring evidence that people have been living with or without genders for as long as recording has taken place. Helping young people understand they have a history and cultural identity may assist them to feel less alienated by showing how societies have integrated gender non conforming people within them.

The recording of gender non conforming people in history has varied over time and cultures. In Hindu culture many gods were often described or illustrated as being two sexes at the same time and duality in gods exists in Hindu writing starting in about 1200BC. The Hijra (an extended community of trans / third-sex people in India, Pakistan and Bangladesh), have a very ancient history, and play a widely-valued and respected role in Hindu society today. They were culturally part of the Indian sub continent before being outlawed by British rule in India by being placed under the Criminal Tribes Act 1871 lived full and active lives in their communities. The ancient Kama Sutra also mentions feminine people of a third sex (tritiya prakriti).

Many sub-Saharan African communities have traditionally preserved a respected social space for Trans men and Trans women (Epprecht , 2003). Native American history is also very rich in terms of examples of Two Spirit or Co-Gendered people. Two Spirit is a modern term and modern language and understanding may interpret these individuals as being Trans but they lived with their tribes as members of the community and this was recorded by the colonising Spanish in over 130 separate tribes across Northern and Central America. Not all tribes had rigid gender roles some considering there to be four genders: masculine man, feminine man, masculine woman, feminine woman.

Perhaps one of the most famous 'Two spirit' people was We'wha from the Zuni tribe in the New Mexico area. We'wha was a Lhamana (a man that lived in part as a woman) and wore a mix of women's and men's clothes, performing masculine religious and judicial functions at the same time as performing feminine duties, tending to laundry and the garden. (Bost et al, 2003)

Marc Epprecht: Hungochani: the History of a Dissident Sexuality in Southern Africa (McGill-Queen's University Press, 2004).

Suzanne Bost, Mulattas and Mestizas: Representing Mixed Identities in the Americas, 1850-2000, (Athens, Georgia: University of Georgia Press, 2003)

Appendix 6
Glossary of Terms

Binding – a FtoM adolescent who is developing breasts may strap down their chest so that it is less obvious. This can be hot, uncomfortable and restrictive but very important to their psychological and emotional wellbeing. It might make certain PE lessons difficult for them to participate in and could sometimes lead to breathing difficulties, skeletal problems and fainting.

Blockers - Gonadotrophin inhibiting agents are not hormones that will give the body changes associated with cross-sex hormone therapy. Rather they block the body from releasing the hormones that change the body of boys and girls during puberty to either a more male or more female form and keep it at pre-puberty stage of development. Stopping treatment allows the body to go through the normal puberty for that child - or alternatively, if the child wishes, he or she can elect to have cross-hormone therapy when they have reached an age where they can give their informed consent to such treatment.

CisGender – 'not trans' this would be a person that has no conflict between their assigned sex at birth and their gender as it develops.

FtoM – Female to Male, a person that was identified as Female at birth but came to feel that their true gender is actually male.

Gender – the way that a person feels about themselves in relation to their physical and mental self; the basis of their identifying as male, or female, or neither, or either, both.

Gender Dysphoria – the medical condition that describes the symptoms of being transgender.

GenderFluid - moving between genders or with a fluctuating gender identity.

Gender Identity Disorder – GID is a medical term describing being transgender, this tends not to be used owing to the negative subtext around the word disorder.

Gender Recognition Certificate – an official document presented by a Gender Recognition Panel that enables all official documents and records (including birth certificate) to be amended to the true gender of the individual thereby providing full legal recognition.

GenderQueer - is a catch-all category for gender identities other than man and woman, thus outside of the gender binary and cisnormativity,[1] having an overlap of, or indefinite lines between, gender identity, two or more genders or without a gender.

MtoF – Male to Female, a person who was identified as male at birth but came to feel that their true gender is actually Female.

Non-binary - refers to a spectrum of people who do not welcome or accept the gender label of 'male' or 'female' the gender identity of a man or a woman. The gender identities within the spectrum can be presented or revolved around terms such as masculine and feminine as they please but they define as neither male nor female.

Packing – a FtoM person may wear a prosthetic item in their pants that will give a 'bulge' in their trousers so as to appear more male.

Pronoun – the descriptor relating to gender that identifies an individual – such as 'she' 'him' or 'his'.

Sex – the way a person's body appears, sometimes wrongly, to indicate their gender. It is the assigned determiner on a persons birth certificate.

SMSC – Social, Moral, Spiritual & Cultural.

Transgender – a person who feels the assigned gender and sex at birth conflicts with their true gender.

Transitioning – the process by which a person starts to live in their true gender.

Trans – a word used as an umbrella term to encompass all forms of Transgender, Transsexual, Transitioning etc.

Transsexual – a Transgender person who lives full time in their true gender.

True Gender – the gender that a person truly feels they are inside.

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